II

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Consideration of the question whether an agency-shop provision in a collective-bargaining agreement covering governmental employees is, as such, constitutionally valid must begin with two cases in this Court that on their face go far toward resolving the issue. The cases are *Railway Employes' Dept.* v. *Hanson, supra,* and *Machinists* v. *Street,* 367 U. S. 740.

In the *Hanson* case a group of railroad employees brought an action in a Nebraska court to enjoin enforcement of a union-shop agreement.[10] The challenged clause was author-

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constitutionally be compelled to contribute the service charge, or at least some portion of it, thus survives the expiration of the collective-bargaining agreement itself.

[10] Under a union-shop agreement, an employee must become a member of the union within a specified period of time after hire, and must as a member pay whatever union dues and fees are uniformly required. Under both the National Labor Relations Act and the Railway Labor Act, "[i]t is permissible to condition employment upon membership, but membership, insofar as it has significance to employment rights, may in turn be conditioned only upon payment of fees and dues." *NLRB* v. *General Motors,* 373 U. S. 734, 742. See 29 U. S. C. § 158 (a) (3); 45 U. S. C. § 152 Eleventh, quoted in n. 11, *infra.* Hence, although a union shop denies an employee the option of not formally becoming a union member, under federal law it is the "practical equivalent" of an agency shop, *NLRB* v. *General Motors, supra,* at 743. See also *Lathrop* v. *Donohue,* 367 U. S. 820, 828.

Hanson was concerned simply with the requirement of financial support for the union, and did not focus on the question whether the additional requirement of a union-shop arrangement that each employee formally join the union is constitutionally permissible. See *NLRB* v. *General Motors, supra,* at 744 ("Such a difference between the union and agency shop may be of great importance in some contexts . . ."); cf. *Storer* v. *Brown,* 415 U. S. 724, 745–746. As the agency shop before us does not impose that additional requirement, we have no occasion to address that question.